

15. 9:00 AM CASE NUMBER: C25-02471
CASE NAME: KRANTI KAPRE VS. CLEAR RECON CORP
*HEARING ON MOTION IN RE: REQUEST FOR PRELIMINARY INJUNCTION
FILED BY: KAPRE, KRANTI
TENTATIVE RULING:

Before the Court is plaintiffs' application for a preliminary injunction to prevent defendant from holding a foreclosure sale related to their property. Because plaintiffs have failed to demonstrate they will prevail on the merits of their complaint, the application is **denied**.

The general purpose of a preliminary injunction is to preserve the status quo pending a determination on the merits of the action and the granting or denial of a preliminary injunction does not amount to an adjudication of the ultimate rights in controversy. (*Jamison v. Department of Transportation* (2016) 4 Cal.App.5th 356, 361.) A court evaluates two interrelated factors when deciding whether to issue a preliminary injunction. "The first is the likelihood that the plaintiff will prevail on the merits at trial." (*Cohen v. Board of Supervisors* (1985) 40 Cal.3d 277, 286.) The second is the interim harm that the party seeking the injunction will suffer if relief is denied, compared to the harm to the opposing party if granted. (*Cohen, supra*.) While a trial court's determination is guided by a 'mix' of the potential-merit and interim-harm factors (*Butt v. State of California* (1992) 4 Cal.4th 668, 677-678), it may not grant a preliminary injunction unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim. (*Jamison, supra*, 4 Cal.App.5th at 362.)

On September 4, 2025, plaintiffs filed their complaint, alleging the "causes of action." The causes of action are labeled "Application for Temporary Restraining Order - C.C.P. § 526" and "Preliminary and Permanent Injunction - C.C.P. § 526, Civil Code § 29249."

A preliminary injunction is an interim remedy designed to maintain the status quo pending a decision on the merits. (*Major v. Miraverde Homeowners Assn.* (1992) 7 Cal.App.4th 618, 623, citation omitted.) It is not, in itself, a cause of action. (*Ibid.*) Because a cause of action must exist before injunctive relief may be granted, no preliminary injunction may be granted where a complaint fails to state a cause of action. (*Ibid.*) Plaintiffs allude to their desire to obtain a loan modification or payment plan, but provide no specifics concerning entitlement to such a result. They also do not name their mortgage holder as a defendant in this action. While awaiting the hearing on this application, plaintiffs have procured more than the "30-45 days" originally sought in the complaint. Accordingly, while plaintiffs have not shown a probability of success on the merits, they have procured time to investigate options with respect to any available loss mitigation options offered by the mortgage servicer.

16. 9:00 AM CASE NUMBER: MSC19-02076
CASE NAME: MAUREEN MBADIKE-OBIOIRA, MD VS. CENTRAL EAST BAY IPA, MEDICAL GROUP INC
HEARING ON SUMMARY MOTION FILED BY: MBADIKE-OBIOIRA, MD, MAUREEN
FILED BY: